

Harbansh Yadav v. State of U.P.

Allahabad High Court · Division Bench · 16 May 2024 · 2024:AHC:89051-DB · Writ-C No. 12344 of 2024 · **Impugned recovery bill quashed; Executive Engineer may proceed afresh.**

HEADNOTE

A bill treated as a notice under Section 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 cannot issue where no final assessment on alleged unauthorized use has been passed. The writ was allowed and the bill quashed, with liberty to the Executive Engineer to proceed afresh in accordance with law.

FACTUAL SUMMARY

The petitioner challenged a 22 June 2020 bill issued after an inspection that, the Electricity Department said, found unauthorized consumption at his premises. The bill was to be treated as a notice under Section 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958. He alleged that no provisional-assessment notice had been served and that the bill was a recovery notice without a final assessment. The Department treated the writ as one against a provisional assessment and said a reply would be decided under Clauses 6.8/8.1 of the Electricity Supply Code, 2005.

REUSABLE CONSTRUCTIONS

1. Recovery under Section 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 cannot be invoked where no final assessment on alleged unauthorized use has been passed. ¶ 6-8
2. A plea that the writ attacks only a provisional assessment, to be answered under Clauses 6.8/8.1 of the Supply Code, 2005, does not justify a Section 5 recovery notice. ¶ 6-8

HOLDING-UNITS

INTERPLAY · UPGEU-1958::5

recovery notice without final assessment

HOLDING

Recovery power under Section 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 cannot be invoked where, concededly, no final assessment order has been passed on alleged unauthorized use. The Department's plea that the writ attacked only a provisional assessment, to be answered under Clauses 6.8/8.1 of the Electricity Supply Code, 2005, did not justify the Section 5 notice. The impugned bill was quashed, leaving the Executive Engineer free to proceed afresh in accordance with law. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED UNAUTHORIZED USE AND ANY FRESH ASSESSMENT OR RECOVERY

The Executive Engineer was left free to proceed afresh in accordance with law. ¶ 8